

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X
SANTIAGO HERNANDEZ,
Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER MELISSA
CASTILLO, POLICE OFFICER WENDY FLORES,
POLICE OFFICER JAMES RODRIGUEZ, POLICE
OFFICER JUAN RODRIGUEZ, POLICE OFFICER
STEVEN OQUENDO, POLICE OFFICER JASON
FERNANDEZ, POLICE OFFICER OSVALDO
MALDONADO, DETECTIVE DAVID MONTANEZ,
and POLICE OFFICERS "JOHN DOE" #1-6 (being
unnamed Police Officers of the 40th Precinct, the name
John Doe being fictitious, as the true names are presently
unknown), each Individually and in their Official Capacity

Defendants.
-----X

Index#: 26340/2015E

VERIFIED COMPLAINT

Jury Trial Demanded

Law Dep't No.: 2016-006830

The basis of venue is:
Location of Occurrence

Hon. Mitchell J. Danziger
IAS Part: 33

Plaintiff SANTIAGO HERNANDEZ, by his attorney, JAY HEINRICH of THE
HEINRICH LAW GROUP, P.C., complains of the defendants herein and alleges, upon
information and belief, as follows:

NATURE OF THE CASE

1. This is an action to recover money damages arising out of, and to redress, the defendants' violation of the rights accorded to Plaintiff by the Civil Rights Act of 1871, 42 U.S.C. §1983, by the Constitution of the United States, including the First, Fourth, Fifth, Eighth, and Fourteenth Amendments, and by the laws of the State of New York.

2. Plaintiff, while lawfully present in front of the premises known as 428 East 157th Street, in the County of the Bronx, State of New York, was falsely arrested, falsely imprisoned, and

subjected to excessive force by the defendants, officers of the New York City Police Department. Plaintiff was deprived of his constitutional rights when the individual defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff, and subjected plaintiff to excessive force.

3. Because the defendants knowingly and intentionally violated the plaintiff's clearly established rights, they are not entitled to qualified immunity. By this action, plaintiff is demanding compensatory damages for the harms he has suffered as a result of the defendants' unlawful actions, punitive damages to punish and deter the defendants from engaging in similar unlawful actions in the future, attorney's fees and costs, and all available legal and equitable relief. The plaintiff demands trial by jury.

FACTS

4. Plaintiff SANTIAGO HERNANDEZ is a citizen of the United States, who, at all times relevant herein, resided in the town of Dobbs Ferry, State of New York, County of Westchester.

5. The City of New York, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

6. The City of New York, is authorized by law to maintain and operate the New York City Police Department ("NYPD"), a duly authorized public authority and police department, authorized to perform all functions of a police department per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York. The City of New York assumes the risks incidental to the maintenance of the employment of police officers as said risk attaches to the public consumers of the services provided by the NYPD.

7. Defendant POLICE OFFICER MELISSA CASTILLO is a natural person who, at all times relevant herein, was employed by The City of New York as a police officer.

8. At all times relevant herein, defendant POLICE OFFICER MELISSA CASTILLO was acting within the scope of her employment by The City of New York.

9. Defendant POLICE OFFICER MELISSA CASTILLO personally participated in the unlawful police activity that is the subject of this action.

10. At all relevant times herein, Defendant POLICE OFFICER MELISSA CATILLO was acting under color of state law and in the scope of her employment by The City of New York as a Police Officer with the NYPD.

11. Defendant POLICE OFFICER MELISSA CASTILLO is being sued herein in her individual and in her official capacity.

12. Defendant POLICE OFFICER WENDY FLORES is a natural person who, at all times relevant herein, was employed by The City of New York as a police officer.

13. At all times relevant herein, defendant POLICE OFFICER WENDY FLORES was acting within the scope of her employment by The City of New York.

14. Defendant POLICE OFFICER WENDY FLORES personally participated in the unlawful police activity that is the subject of this action.

15. At all relevant times herein, Defendant POLICE OFFICER WENDY FLORES was acting under color of state law and in the scope of her employment by The City of New York as a Police Officer with the NYPD.

16. Defendant POLICE OFFICER WENDY FLORES is being sued herein in her individual and in her official capacity.

17. Defendant POLICE OFFICER JAMES RODRIGUEZ is a natural person who, at all times

relevant herein, was employed by The City of New York as a police officer.

18. At all times relevant herein, defendant POLICE OFFICER JAMES RODRIGUEZ was acting within the scope of his employment by The City of New York.

19. Defendant POLICE OFFICER JAMES RODRIGUEZ personally participated in the unlawful police activity that is the subject of this action.

20. At all relevant times herein, Defendant POLICE OFFICER JAMES RODRIGUEZ was acting under color of state law and in the scope of his employment by The City of New York as a Police Officer with the NYPD.

21. Defendant POLICE OFFICER JAMES RODRIGUEZ is being sued herein in his individual and in his official capacity.

22. Defendant POLICE OFFICER JUAN RODRIGUEZ is a natural person who, at all times relevant herein, was employed by The City of New York as a police officer.

23. At all times relevant herein, defendant POLICE OFFICER JUAN RODRIGUEZ was acting within the scope of his employment by The City of New York.

24. Defendant POLICE OFFICER JUAN RODRIGUEZ personally participated in the unlawful police activity that is the subject of this action.

25. At all relevant times herein, Defendant POLICE OFFICER JUAN RODRIGUEZ was acting under color of state law and in the scope of his employment by The City of New York as a Police Officer with the NYPD.

26. Defendant POLICE OFFICER JUAN RODRIGUEZ is being sued herein in his individual and in his official capacity.

27. Defendant POLICE OFFICER STEVEN OQUENDO is a natural person who, at all times relevant herein, was employed by The City of New York as a police officer.

28. At all times relevant herein, defendant POLICE OFFICER STEVEN OQUENDO was acting within the scope of his employment by The City of New York.

29. Defendant POLICE OFFICER STEVEN OQUENDO personally participated in the unlawful police activity that is the subject of this action.

30. At all relevant times herein, Defendant POLICE OFFICER STEVEN OQUENDO was acting under color of state law and in the scope of his employment by The City of New York as a Police Officer with the NYPD.

31. Defendant POLICE OFFICER STEVEN OQUENDO is being sued herein in his individual and in his official capacity.

32. Defendant POLICE OFFICER JASON FERNANDEZ is a natural person who, at all times relevant herein, was employed by The City of New York as a police officer.

33. At all times relevant herein, defendant POLICE OFFICER JASON FERNANDEZ was acting within the scope of his employment by The City of New York.

34. Defendant POLICE OFFICER JASON FERNANDEZ personally participated in the unlawful police activity that is the subject of this action.

35. At all relevant times herein, Defendant POLICE OFFICER JASON FERNANDEZ was acting under color of state law and in the scope of his employment by The City of New York as a Police Officer with the NYPD.

36. Defendant POLICE OFFICER JASON FERNANDEZ is being sued herein in his individual and in his official capacity.

37. Defendant POLICE OFFICER OSVALDO MALDONADO is a natural person who, at all times relevant herein, was employed by The City of New York as a police officer.

38. At all times relevant herein, defendant POLICE OFFICER OSVALDO MALDONADO

was acting within the scope of his employment by The City of New York.

39. Defendant POLICE OFFICER OSVALDO MALDONADO personally participated in the unlawful police activity that is the subject of this action.

40. At all relevant times herein, Defendant POLICE OFFICER OSVALDO MALDONADO was acting under color of state law and in the scope of his employment by The City of New York as a Police Officer with the NYPD.

41. Defendant POLICE OFFICER OSVALDO MALDONADO is being sued herein in his individual and in his official capacity.

42. Defendant DETECTIVE DAVID MONTANEZ is a natural person who, at all times relevant herein, was employed by The City of New York as a police officer.

43. At all times relevant herein, defendant DETECTIVE DAVID MONTANEZ was acting within the scope of his employment by The City of New York.

44. Defendant DETECTIVE DAVID MONTANEZ personally participated in the unlawful police activity that is the subject of this action.

45. At all relevant times herein, Defendant DETECTIVE DAVID MONTANEZ was acting under color of state law and in the scope of his employment by The City of New York as a Police Officer with the NYPD.

46. Defendant DETECTIVE DAVID MONTANEZ is being sued herein in his individual and in his official capacity.

47. Defendants POLICE OFFICERS "JOHN DOE" #1-6 are natural persons who, at all times relevant herein, were employed by The City of New York as police officers.

48. At all times relevant herein, defendants POLICE OFFICERS "JOHN DOE" #1-6 were acting within the scope of their employment by The City of New York.

49. Defendants POLICE OFFICERS "JOHN DOE" #1-6 personally participated in the unlawful police activity that is the subject of this action.

50. At all relevant times herein, Defendants POLICE OFFICERS "JOHN DOE" #1-6 were acting under color of state law and in the scope of their employment by The City of New York as Police Officers with the NYPD.

51. Defendants POLICE OFFICERS "JOHN DOE" #1-6 are being sued herein in their individual and in their official capacity.

52. On the evening of August 18, 2014, Plaintiff SANTIAGO HERNANDEZ, was lawfully in front of the premises known as 428 East 157th Street, Bronx, New York.

53. On the evening of August 18, 2014, plaintiff SANTIAGO HERNANDEZ, was approached by Defendants POLICE OFFICER WENDY FLORES and POLICE OFFICER MELISSA CASTILLO outside of the premises known as 428 East 157th Street, Bronx, New York.

54. Plaintiff was asked by Defendants POLICE OFFICER WENDY FLORES and POLICE OFFICER MELISSA CASTILLO as to his purpose and activity in front of said premises. Plaintiff responded that he was waiting for a resident of the premises to come outside to where Plaintiff was lawfully waiting.

55. Defendants POLICE OFFICER WENDY FLORES and POLICE OFFICER MELISSA CASTILLO proceeded to ask Plaintiff for identification and to conduct a search of Plaintiff's person and possessions.

56. Plaintiff inquired of Defendants POLICE OFFICER WENDY FLORES and POLICE OFFICER MELISSA CASTILLO as to why the search was conducted. Defendants POLICE OFFICER WENDY FLORES and POLICE OFFICER MELISSA CASTILLO refused to answer Plaintiff's repeated inquiries.

57. Defendant POLICE OFFICER MELISSA CASTILLO then proceeded to handcuff Plaintiff. At the time, Plaintiff was sitting peacefully and lawfully on the steps in front of said premises, with his back against a wall. Plaintiff continued to politely inquire as to why he was stopped and why he was being handcuffed.

58. Fearing for his safety at the hands of the Defendants, Plaintiff remained seated, unmoving, continuing to inquire as to the nature of the stop and the restraining.

59. A few minutes later, additional police officers, including Defendants POLICE OFFICER JAMES RODRIGUEZ, POLICE OFFICER JUAN RODRIGUEZ, POLICE OFFICER STEVEN OQUENDO, POLICE OFFICER JASON FERNANDEZ, POLICE OFFICER OSWALDO MALDONADO, DETECTIVE DAVID MONTANEZ, and POLICE OFFICERS "JOHN DOE" #1-6 (each, individually, and collectively, together with POLICE OFFICER MELISSA CASTILLO and POLICE OFFICER WENDY FLORES, referred to herein as "Defendant" or "Defendants") arrived at 428 East 157th Street, Bronx, New York.

60. Upon their arrival at 428 East 157th Street, Bronx, New York, certain of the Defendants proceeded to grab Plaintiff from the steps. Plaintiff was then thrown to the ground, and both hands were handcuffed behind his back.

61. Plaintiff remained motionless as the Defendants proceeded to assault Plaintiff.

62. Plaintiff was thereupon kicked repeatedly in the arms and legs, hit with a police baton along the legs, arms, and head, sprayed in the face with pepper spray, and otherwise physically assaulted by Defendants.

63. Plaintiff blacked out during the assault, only to reawake amidst the continued assault.

64. Thereupon, Plaintiff was placed in the passenger compartment of a New York City Police Department vehicle and transported to the 40th Police Precinct.

65. Upon arrival to the 40th Precinct, Plaintiff was dragged from the vehicle, slammed into and through the doors of the building, and thrown onto the floor of a bathroom.

66. Plaintiff complained to the Defendants that he could not breathe and could not see due to the burning and noxious effects of the pepper spray used on him. Plaintiff requested assistance and water. Plaintiff was told by Defendants that he could remain where he was and “let that burn on you for a few minutes.”

67. After a few minutes left on the floor, experiencing severe pain and burning from the pepper spray, unable to see and having difficulty breathing, Plaintiff was directed to a sink to wash his face off. Plaintiff thereupon washed his face as best as he could to reduce the effects of the pepper spray.

68. Plaintiff was then placed in a holding cell.

69. While inside the holding cell, Plaintiff blacked out again for a few minutes.

70. The arrest charges lodged against Plaintiff by Defendants were for violations of 1) Penal Law §240.05 (Riot in the Second Degree), 2) Penal Law §205.30 (Resisting Arrest), 3) Penal Law §195.05 (Obstructing Governmental Administration in the Second Degree), and 4) Penal Law §240.20(1) (Disorderly Conduct).

71. The People of the State of New York declined to prosecute Plaintiff on any of these or any other charges stemming from the incident.

72. At about 10:45 AM on August 19, 2014, Plaintiff was released from Police custody.

73. Thereafter, Plaintiff went to Lincoln Hospital in Bronx, New York for treatment of the injuries he sustained at the hands of the Defendants.

74. Plaintiff suffered injuries to his head, arms, legs and back at the hands of the Defendants.

75. Plaintiff continues to suffer from severe headaches, anxiety, fear, depression, pain and

suffering as a result of the beating he sustained at the hands of the Defendants.

**AS AND FOR A FIRST CAUSE OF ACTION
DEPRIVTION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION AND 42 U.S.C. §1983**

76. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "75" with the same force and effect as if fully set forth herein.

77. All of the aforementioned acts of the Defendants were carried out under the color of state law.

78. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and were in violation of 42 U.S.C. §1983.

79. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

80. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of The City of New York and the NYPD.

81. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

82. As a result of Defendants' unconstitutional conduct, Plaintiff suffered loss of liberty, insult and embarrassment, emotional pain and suffering, physical pain and suffering, and other compensable injuries, for which he is entitled to an award of compensatory damages.

83. Plaintiff is entitled to an award of punitive damages to punish Defendants for their

unconstitutional conduct and to deter them from engaging in similar unconstitutional conduct in the future.

AS AND FOR A SECOND CAUSE OF ACTION
FALSE ARREST/FALSE IMPRISONMENT UNDER 42 U.S.C. §1983

84. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "83" with the same force and effect as if fully set forth herein.

85. As alleged above, Plaintiff was seized, detained, arrested, and imprisoned by Defendants.

86. The Defendants intended to, and did, confine Plaintiff.

87. Plaintiff was conscious of the confinement.

88. Plaintiff did not consent to the confinement.

89. The confinement of Plaintiff was not otherwise privileged.

90. There was no reasonable suspicion, probable cause, arguable probable cause, or other legal justification for Plaintiff's seizure, detention, arrest, and imprisonment by the Defendants.

91. Defendants are not entitled to qualified immunity for wrongly seizing, detaining, arresting, and imprisoning Plaintiff.

92. Defendants' actions violated Plaintiff's clearly established Constitutional rights.

93. It was not objectively reasonable for Defendants to believe that their actions did not violate Plaintiff's rights.

94. Defendants acted with intentional, knowing, callous, and/or reckless indifference to Plaintiff's rights.

95. As a result of Defendants' unconstitutional conduct, Plaintiff suffered loss of liberty, insult and embarrassment, emotional pain and suffering, physical pain and suffering, and other compensable injuries, for which he is entitled to an award of compensatory damages.

96. Plaintiff is entitled to an award of punitive damages to punish Defendants for their

unconstitutional conduct and to deter them from engaging in similar unconstitutional conduct in the future.

AS AND FOR A THIRD CAUSE OF ACTION
EXCESSIVE FORCE UNDER 42 U.S.C. §1983

97. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “96” with the same force and effect as if fully set forth herein.

98. Defendants used excessive and unreasonable force against Plaintiff.

99. The level of force used by the Defendants against Plaintiff was objectively unreasonable.

100. The Defendants acted in concert in the use of excessive force against Plaintiff and/or could have intervened to stop the use of excessive force.

101. The use of excessive force by the Defendants deprived Plaintiff of his right to be secure in his person.

102. Defendants were acting under color of state law when they used excessive force against Plaintiff.

103. Defendants deprived Plaintiff of his right to be secure in his person guaranteed by the Fourth and Fourteenth Amendments to the Constitution of the United States by using excessive force against him.

104. As a result of the Defendants’ use of excessive force, Plaintiff sustained physical injuries to his arms, legs, back and head.

105. As a result of the Defendants use of excessive force, Plaintiff experienced pain, physical and emotional distress, as well as hardship and anxiety, and other compensable injuries, for which he is entitled to an award of compensatory damages.

106. Plaintiff is entitled to an award of punitive damages to punish Defendants for their use of excessive force and to deter them from engaging in similar unconstitutional conduct in the

future.

**AS AND FOR A FOURTH CAUSE OF ACTION
FAILURE TO INTERVENE UNDER 42 U.S.C. §1983**

107. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “106” with the same force and effect as if fully set forth herein.

108. Defendants violated Plaintiff’s constitutional rights by failing to intervene to prevent the use of excessive force against the Plaintiff.

109. As set forth above, Defendants violated the Plaintiff’s constitutional rights by using excessive force against Plaintiff.

110. Defendants had a duty to intervene to prevent the use of excessive force against Plaintiff by fellow police officers.

111. Defendants had an opportunity to intervene to prevent the use of excessive force against Plaintiff by fellow police officers.

112. Defendants failed to intervene to prevent the use of excessive force against Plaintiff by fellow police officers.

113. Due to the violations of Plaintiff’s Constitutional rights by the Defendants as set forth above, Plaintiff suffered mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom, for which he is entitled to an award of compensatory damages.

114. Plaintiff is entitled to an award of punitive damages to punish Defendants for their failure to prevent the use of excessive force and to deter them from engaging in similar unconstitutional conduct in the future.

**AS AND FOR A FIFTH CAUSE OF ACTION
ASSAULT**

115. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “114” with the same force and effect as if fully set forth herein.

116. Defendant's aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

117. As a result of Defendants' conduct, Plaintiff suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**AS AND FOR A SIXTH CAUSE OF ACTION
BATTERY**

118. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "117" with the same force and effect as if fully set forth herein.

119. The repeated blows to the head, legs, arms and back of Plaintiff, constituted a harmful and offensive touching of Plaintiff by the Defendants.

120. The repeated spraying of irritant pepper spray in the face of the Plaintiff, constituted a harmful and offensive touching of Plaintiff by the Defendants.

121. Defendants did so without privilege or consent from Plaintiff.

122. As a result of Defendants' conduct, Plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**AS AND FOR A SEVENTH CAUSE OF ACTION
NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

123. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "122" with the same force and effect as if fully set forth herein.

124. The actions of Defendants in handcuffing Plaintiff and subjecting him to severe and repeated blows to the head, legs, arms and back, were extreme, outrageous and exceeded all reasonable bounds of decency and any norms acceptable to society.

125. The actions of Defendants in spraying Plaintiff with irritant pepper spray, were extreme, outrageous and exceeded all reasonable bounds of decency and any norms acceptable to society.

126. Defendants acted with the desire and intent to cause Plaintiff emotional distress or acted under circumstances known to them which made it substantially certain that they would cause emotional distress.

127. Defendants acted in a manner as to negligently cause emotional distress to Plaintiff.

128. Defendants acted with utter disregard of the consequences of their actions.

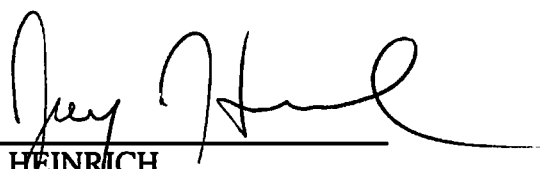
129. The aforementioned conduct was committed by Defendants while acting within the scope of, and acting in furtherance of, their employment by The City of New York.

130. As a result of the aforementioned conduct, Plaintiff suffered severe emotional distress, mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom, and sustained the physical injuries and damages previously described above.

WHEREFORE, Plaintiff SANTIAGO HERNANDEZ respectfully requests judgment against defendants as follows:

- i. An order awarding compensatory damages in an amount to be determined at trial;
- ii. An order awarding punitive damages in an amount to be determined at trial;
- iii. Reasonable attorney's fees and costs under 42 U.S.C. §1983; and
- iv. Directing such other and further relief as the Court may deem just and proper, together with attorney's fees, interest, costs and disbursements of this action.

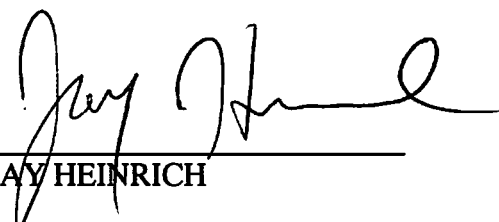
Dated: Bronx, New York
September 26, 2018

By: 
JAY HEINRICH
THE HEINRICH LAW GROUP, P.C.
Attorney of Plaintiff
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ATTORNEY VERIFICATION

The undersigned, an attorney duly admitted to practice in the courts of the State of New York, hereby affirms under the penalties of perjury that I am the attorney of record for the Plaintiff in this action; I have read the foregoing COMPLAINT and know the contents thereof; all the statements contained in the foregoing COMPLAINT have been obtained through a review of documents pertaining to this case and from conversations with the Plaintiff and, upon information and belief, are true. This verification is made by me because the Plaintiff does not reside in the County wherein I maintain my office.

Dated: Bronx, New York
September 26, 2018



JAY HEINRICH